

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202200569939CUPA: Clayton vs City of Oxnard
07/29/2026 in Department 21
Motion for Determination of Good Faith Settlement

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant City of Oxnard’s Motion for Determination of Good Faith Settlement
(*Unopposed*)

Tentative Ruling: Defendant City of Oxnard’s Motion for Determination of Good Faith Settlement is GRANTED. For good cause shown, relief is proper per Code of Civil Procedure section 877.6 and *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499.

Defendant has made a persuasive argument regarding the amount paid in settlement and Defendant’s proportionate liability. Defendant has essentially shown that the settlement was entered into in good faith. (Wood Decl. ¶ 16.) The amount to be paid in settlement by Defendant is \$275,000. As a settling party, plaintiff is entitled to a “discount” of their estimated proportionate liability, especially in light of facts surrounding the accident. There are no insurance policy limits issues or financial condition of the defendant to be implicated. Defense counsel’s declaration indicates that the Settlement was reached in an adversarial manner and there was no collusion.

Based on the above, there has been no showing that the *Tech-Bilt* factors support a determination that the settlement amount of \$275,000 is “outside the ballpark” of a reasonable estimate of the moving party’s potential liability. Accordingly, the *Tech-Bilt* factors appear to weigh in favor of a determination that the settlement is in good faith.

Moreover, in light of the moving papers, an argument can be made that the settlement in this case is based on the economics of further litigation costs and the uncertainty of litigation and jury trials.

Based on the foregoing, this motion is properly granted as the settlement is clearly within the “ballpark” of the settling defendant’s proportionate liability.

Given this Court’s finding that the settlement between the City Defendant and Plaintiffs is in good faith, the City is entitled to a general order barring future claims for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault, arising out of the facts alleged in Plaintiff’s Complaint.

The Order submitted by the City in conjunction with this motion is signed and filed this date.

Counsel for City Defendant to give notice of this Court’s ruling within two (2) court days.